

BEFORE
THE FEDERAL MARITIME COMMISSION

DOCKET NO. 23-01

SAMSUNG ELECTRONICS AMERICA, INC.
Complainant

VS.

SM LINE CORPORATION
Respondent

**RESPONDENT'S MOTION FOR CONFIDENTIAL TREATMENT
OF PORTIONS OF ITS RESPONSE TO
SAMSUNG ELECTRONICS AMERICA, INC.'S MOTION TO QUASH**

Respondent SM Line Corporation ("SM Line") hereby moves pursuant to 46 C.F.R. §§ 502.69 and 502.5(b) to seek confidential treatment of certain portions of Respondent's Response to Samsung Electronics America, Inc.'s ("SEA") Motion to Quash Notice of Deposition, or in the Alternative for a Protective Order ("Response to Motion to Quash") and Exhibits A and Exhibit B submitted therewith. ("Response").

SM Line's Response references discovery disclosures and responses exchanged between SM Line and SEA. These responses and disclosures have been exchanged between the parties subject to a confidentiality agreement and therefore cannot be disclosed.

For the foregoing reasons, SM Line respectfully requests that:

1. The discovery responses and disclosures referenced in the Response as well as copied of such responses and disclosures that are included in Exhibits A and B to SM Line's Response to the Motion to Quash, be kept confidential.

2. Be allowed to submit a public redacted version of the material for which it seeks confidentiality pursuant to 46 C.F.R. § 502.5(a)(2).

Dated: January 19, 2024

Respectfully submitted,

/s/Wook Chung

Wook Chung

wchung@mmwr.com

Montgomery McCracken Walker & Rhoads LLP

427 Madison Avenue, 24th Floor

New York, New York 10022

(212) 201-1931 / (212) 867-9500

Counsel for Respondent

SM Line Corporation

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 19th day of January 2024, the foregoing document was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
Presiding Administrative Law Judge
judges@fmc.gov

Complainant
SAMSUNG ELECTRONICS AMERICA, INC.
C/O Holland & Knight LLP
Christopher R. Nolan
chris.nolan@hklaw.com
Allison N. Skopec
allison.skopec@hklaw.com
Chiara D. Kalogjera-Sackellares
chiara.sackellares@hklaw.com
Gerald A. Morrissey III
gerald.morrissey@hklaw.com
Kristine O. Little
kristine.little@hklaw.com
Hyun Yoon
Eric.yoon@hklaw.com

/s/Wook Chung _____